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File No.: EXP202301120

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On October 20, 2022, a complaint was filed with the Spanish Agency for Data Protection against VOLKSWAGEN BANK GMBH BRANCH IN SPAIN (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that their personal data has been included in common credit information systems, specifically in the ASNEF system, due to an outstanding debt that is subject to judicial proceedings in the ***COURT. The complainant indicates that they were not informed of the inclusion of their personal data by the credit information system and after requesting deletion from it on October 10, 2022, they received a response on October 18, 2022, in which the reporting entity confirms the existence of the outstanding debt and its permanence in the file.

Along with their complaint, they provide a request for deletion addressed to the claimed common credit information system and a response confirming the inclusion of the complainant's personal data and Decree (...) in which the monitoring process is declared terminated due to the opposition being filed in a timely manner by the defendant and the corresponding Ordinary Trial demand being filed by the plaintiff, continuing its processing as provided in Ordinary Trial.

SECOND: On January 20, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

On March 10, 2023, requests for information were made to VOLKSWAGEN BANK GMBH and ASNEF-EQUIFAX.

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On March 24, 2023, ASNEF-EQUIFAX submitted a written response to the request, in which it indicates among other aspects the following:

- That on October 18, 2022, it responded to the deletion request submitted by the complainant, denying the cancellation and maintaining the permanence of the data in the ASNEF File due to the confirmation by the entity that requested its inclusion (VW BANK) of the existence of the debt, since the judicial Decree of September 20, 2022, agrees to terminate a monitoring procedure and open an ordinary one for which no documents are provided. And that the entity that initiated the monitoring procedure and the subsequent ordinary one was the creditor of the debt, so it could not be understood as a disputed debt unless the debtor complainant had provided evidence of their opposition, which they did not do.

Relevant documentation provided by ASNEF-EQUIFAX:

- Copy of the emails in which it communicates to VOLKSWAGEN BANK GMBH the deletion request made by the complainant asking whether those data should or should not be maintained in the ASNEF file and the response from VOLKSWAGEN BANK GMBH indicating that they must be maintained.

- Supporting documentation corresponding to the management and sending of the notification that includes:

o Certification issued by the provider of the Generation, Printing, and Provision of Postal Services,

o Correos and/or Unipost, SERVIFORM, S.A. (formerly EMFASIS BILLING & Marketing Services, S.L), certifying the date of the notification referenced, along with the rest of the communications issued in the same process, without any incident occurring that would have prevented its execution, as well as the date on which it was made available to the postal services.

o Copy of the notification of inclusion referenced.

o Delivery note and receipt at the office (...)

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of Correos and Hispapost, with the corresponding admission date value.

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Certification issued by the service provider for the recording and custody of the returns of the notifications, Ilunion CEE Contact Center, S.A (formerly Ilunion IT Services S.A), certifying that the notification in question is not in their custody and has not been subject to their processing for any reason of return, dated 13/03/2023.

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Copy of the response from EQUIFAX dated 18/10/2022 denying the cancellation and maintaining the retention of the data in the ASNEF File due to the confirmation by the entity that requested its inclusion (VW BANK) of the existence of the debt. The date of registration in the ASNEF file is noted as 12/08/2021 and the date of viewing as 11/09/2021, as stated in the response to the deletion request dated 18/10/2022 (...)

On March 24, 2023, VOLKSWAGEN BANK GMBH submitted a written response to the information request, indicating among other aspects the following:

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On October 11, 2022, VOLKSWAGEN BANK GMBH received, through Asnef-Equifax, Servicios de Información sobre Solvencia y Crédito S.L., the cancellation request made by the claimant before said credit information systems (hereinafter, "Asnef File"). They proceeded to dismiss said request on October 11, 2022, understanding that each of the requirements established in the data protection regulations for the inclusion and maintenance of the aforementioned debt in said systems were met.

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Attached to their written response to the information request is a list of the personal data held in their systems regarding the claimant. As well as, the credit application formalized by the claimant with VOLKSWAGEN BANK GMBH on April 23, 2021, registered as contract no. (...).

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Stating in the section of said contract "DETAILED PRIVACY INFORMATION" "What purpose do we process your data for?" (...) "We also have a legitimate interest to: (..) In case of non-payment within the stipulated term and if the requirements established in the current regulations are met, communicate the data related to the non-payment to credit information systems regarding the breach of monetary, financial, or credit obligations."

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And that from the aforementioned financing operation, a series of unpaid installments were recorded with due dates: 28.05.21, 09.06.21, 09.08.21, 09.12.21, 09.01.22, and 09.02.22.

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Each of the unpaid installments with the due dates indicated above has generated the corresponding payment reminder letter to facilitate their payment at the corresponding banking entity. These payment requests were sent to the address contractually provided by the claimant (without any modification of the address communicated by them to this Entity up to the date). In them, the warning regarding the inclusion of the claimant's data in credit information systems in case of continued non-payment with this Entity is expressly included. The prior payment requests are attached along with the Certificate issued by the company with which VOLKSWAGEN BANK GMBH outsources the notification,

follow-up, and storage services of prior payment requests as detailed in section 14 of their written response to the information request. That, as no payment or settlement has been made by the claimant for any of these returns, the unpaid installments were communicated to the credit information systems (Asnef File) fulfilling all the legally established requirements.

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They provide a copy of the certificate issued by the supplying company, relating to one of the payment requests, which are recorded by this Entity as received and therefore, not returned. In this regard, it should be noted that the alphanumeric code referred to in the aforementioned certificate corresponds to the financing contract to which this allegation refers, and therefore to its holder, the claimant, comprising the cited code the following fields: (i) operation number (...), (ii) due date of the unpaid installment (YYYYMMDD) and (iii) installment number of the unpaid installment, (iv) letter corresponding to the payment request mode, in this case, letter A) would correspond to the payment reminder letter.

Relevant documentation provided by VOLKSWAGEN BANK GMBH:

- List of the personal data held in their systems regarding the claimant.
- Credit application where the data processing is informed.
- Loan Agreement for the purchase of movable goods no. (...).
- Copy of the demand for the initiation of monitoring proceedings before the ***COURT.1.
- Copy of the Decree (...) in which the monitoring process is declared terminated due to the opposition being filed in time and form by the defendant (claimant) and the corresponding Ordinary Trial demand being filed by the plaintiff (VW BANK GMBH), continuing its processing as provided in Ordinary Trial.
- Copy of the Order from the aforementioned Court convening a Preliminary Hearing for the next 13/09/2023.

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- Copy of the certificate issued by the supplying company, related to any of the payment requirements, which this Entity acknowledges as received and, therefore, not returned.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Credit Information Systems

Article 20 of the LOPDGDD, which regulates credit information systems, provides in its first section the following:

"1. Unless proven otherwise, the processing of personal data related to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through an alternative binding

dispute resolution procedure between the parties.

c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data related to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.

d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.

e) That data related to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.

When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system shall inform the affected party of the result of that consultation."

III

Legitimacy for Processing

For such processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks."

IV

Conclusion

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The claimant specifies their complaint by stating that their personal data has been included in common credit information systems due to an outstanding debt that is currently in litigation at the Court of First

Instance number 17 in Valencia. Furthermore, they indicate that they were not informed of the inclusion of their personal data by the credit information system.

Regarding the last part of the complaint: the lack of information about the inclusion of their personal data in the Asnef file by the responsible party, it should be noted that EQUIFAX (the entity responsible for the Asnef file) communicated, on August 13, 2021, to the claimant their inclusion in the ASNEF File: providing certifications of the submission to the postal service and its non-return.

Article 20.b) of the LOPDGDD establishes as proof of the legality of data processing that "the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties."

In relation to the judicialization of the facts subject to the complaint, it should be noted that the judicial decree of September 20, 2022, agrees to terminate a monitoring procedure and open an ordinary one; it also certifies that the entity creditor of the debt initiated the monitoring procedure and the subsequent ordinary one. That is to say, the debtor or claiming party has not judicially claimed the debt, but rather it has been the creditor who initiated the judicial procedure.

Finally, regarding the request for the deletion of data, it should be noted that the claimant submitted their request for data deletion to ASNEF/EQUIFAX on October 10, 2022, and that they responded to that request on October 18, 2022.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VOLKSWAGEN BANK GMBH BRANCH IN SPAIN and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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